

whether they are later confirmed in writing. To verify the identity of a caller Convera is only obliged to request that the caller give his or her name. If the caller identifies him or herself as an Authorised Person, Convera is entitled to assume that it is such person. The Client hereby consents to Convera recording all telephone Instructions for the protection of the Parties and acknowledges that such recordings remain the property of Convera.

c) E-mail Instruction: The Client agrees that Convera may act on, and the Client will be bound by, any email Instruction which is from, or appears to be from, an Authorised Person.

d) Internet Instruction: The Client agrees that Convera may act on, and the Client will be bound by, any Instructions received through the Online Payment System in accordance with clauses 4 and 5.

7.3 Transaction Confirmations. Convera may issue to the Client a Transaction Confirmation setting forth the details of any Instruction that Convera receives. If there are any discrepancies between the Instruction and the Transaction Confirmation, the Client must immediately notify Convera of such discrepancy during business hours. If the Client does not communicate any discrepancies within one (1) business day of the day that Convera sends a Transaction Confirmation, then the Transaction Confirmation will constitute conclusive proof of the details of the Instruction. The Client will be bound by the terms upon which Convera accepted any Instruction, regardless of whether the Client receives a Transaction Confirmation.

8. Settlement

8.1 Settlement. Unless otherwise provided in this Agreement or agreed in writing between the Parties, the Client agrees to promptly deliver Settlement to Convera in immediately available funds. If the Client fails to make immediate payment in full Settlement for the transaction, Convera will have the right to suspend and/or ultimately terminate the Services and/or initiate any proceedings necessary to recover any balance due. Such steps will be at the sole discretion of Convera, and the Client agrees:

- a) that Convera will have no liability to the Client;
- b) the Client waives any claim or action against Convera; and
- c) to indemnify and hold Convera harmless from any and all liability, claims, damages and costs including all reasonable fees incurred by Convera resulting from the Client's failure to pay and Convera's effort to collect any balance due.

The Client agrees that Convera may recover interest calculated at the Prime Rate of Convera's major banker(s) plus 2% upon any unpaid amounts plus a late fee.

8.2 Settlement using collateral. In the event of default in payment by the Client, Convera may satisfy any liability arising under this Agreement to Convera and/or any other Convera Group Company, out of any collateral (Prepayment) which Convera holds for the Client, or other obligations Convera has to the Client (e.g. distribution of Contract Funds), without prior notification to the Client. In the event such collateral or other obligation is insufficient, the Client will remain liable to Convera for full Settlement and must promptly pay on demand the amount of any loss or expense sustained by Convera.

8.3 Electronic Debits. If the Client has authorised Convera to initiate debit entries to the Client's bank account by direct debits, the Client agrees that in the case of debit instructions transmitted through the Online Payment System, the usage of the Client Access Methods is a security procedure which constitutes a commercially reasonable method of protecting against unauthorised debits. The Client agrees to be bound by any debit instructions, whether authorised or not, issued in its name and acted upon by Convera, and the Client agrees to indemnify Convera and hold it harmless from and against any and all liability and expense incurred by Convera in connection with its execution of debit instructions believed by Convera to have been issued by an Authorised User. In the event the Client elects not to use or adhere to the security procedures described above, the Client will remain liable as set forth hereinabove for any debit instructions issued in its name, whether authorised or not, and acted upon by Convera. The Client agrees that Convera and the Client's bank are authorised to credit the Client's account from time to time in the event that credit adjustments become necessary. The Client authorises Convera to contact the Client's bank as necessary to effectuate the Services.

8.4 Changes in the Client's Bank / Financial Institution. The Client must provide written notice to Convera if the Client changes the account(s) at its bank/financial institution from which Convera has been granted the authority to initiate